

ELITE TRADERS LOUNGE

Babysitting Services · South Africa

Family Service Agreement

2026 Edition · Terms for Parents & Guardians Booking a Babysitter

Between Elite Traders Lounge (Pty) Ltd (Reg. K2017318876) ("Elite Traders Lounge") and the registering parent or guardian ("the Family"). This Agreement replaces and updates the 2025 edition, correcting the National Minimum Wage figures below and introducing new verification and payment terms.

1. Parties & Nature of the Platform

Elite Traders Lounge operates a booking and verification platform connecting Families with independent, Smile ID-verified Babysitters. Elite Traders Lounge is not the Babysitter's employer and the Babysitter does not become an employee of the Family; the Babysitter provides services as an independent contractor.

2. Registration & Identity Verification

- **South African citizens and permanent residents** register using a valid South African ID number, verified through Smile ID.
- A family member who is not a South African citizen may register using a valid passport together with proof of lawful residence in South Africa (e.g. a valid visa or permanent residence permit). Because a Family is a client of the platform rather than a paid worker, no work permit is required for Family registration.
- **Smile ID identity verification is mandatory for every Family member** before a profile can be activated or before any booking can proceed. Verification uses facial recognition matched against the submitted ID/passport and typically completes within 5–10 minutes; a failed check can be resubmitted.
- **Proof of address is mandatory for every Family:** a utility bill, bank statement, lease/rental agreement, or municipal account/letter, dated within the last three months and reflecting the applicant's name and residential address.
- Elite Traders Lounge displays a **"Verified Identity"** badge on any profile that has passed Smile ID verification. Families and Babysitters are encouraged to only transact with verified profiles.

3. Minimum Wage & Rate Acknowledgement

Every booking must pay the Babysitter at or above the current National Minimum Wage — **R30.23 per hour, effective 1 March 2026** (Government Gazette No. 54075, published 3 February 2026) — and within the correct Appendix B rate band for the Babysitter's experience level. A rate entered below the applicable minimum is void and automatically corrected by the booking system to the compliant minimum shown in Appendix B.

The Family agrees not to negotiate a Babysitter's rate below the legal minimum wage or the applicable Appendix B band floor, and acknowledges that Elite Traders Lounge's booking system enforces this automatically.

4. Appendix B — Rate Bands & Minimum Booking Hours

Level	Experience	Booking type	Hourly rate band	Min. booking	Commission
1	Entry · 0–1 year	Day	R35 – R45/hr	4 hours	10%

Level	Experience	Booking type	Hourly rate band	Min. booking	Commission
2	Standard · 1–3 yrs, references	Day	R45 – R65/hr	4 hours	12.5%
3	Advanced · 3+ yrs, First Aid/CPR	Day	R65 – R85/hr	4 hours	12.5% – 15%
3	Advanced · night rate	Overnight	R70 – R80/hr	10 hours	12.5%
4	Specialist · overnight/special needs	Overnight	R90 – R100/hr	10 hours	12.5%

Day bookings require a minimum of 4 consecutive hours; overnight bookings require a minimum of 10 consecutive hours.

5. Commission Structure

Elite Traders Lounge's commission (10–15%, per Appendix B) is deducted from the total booking fee the Family pays before the net amount is split to the Babysitter's Paystack account. Worked examples:

Service component	Level	Booking fee	ETL commission	Net to babysitter
4-hr @ R45/hr	1 – Entry	R180	R18 (10%)	R162
4-hr @ R65/hr	2 – Standard	R260	R32.50 (12.5%)	R227.50
4-hr @ R85/hr	3 – Advanced	R340	R51 (15%)	R289
10-hr overnight @ R80/hr	3 – Night	R800	R100 (12.5%)	R700
12-hr overnight @ R100/hr	4 – Specialist	R1 200	R150 (12.5%)	R1 050

6. Payments — Paystack Split Payments

- Elite Traders Lounge does not hold, custody, or take responsibility for any Family or Babysitter funds at any point. All payments are processed through **Paystack**, a licensed South African payment service provider, using Paystack's Split Payment functionality.
- Every Family must have an active Paystack account and must supply the associated Paystack account email address during registration, so Elite Traders Lounge can confirm the account exists before enabling split payments.
- When a booking fee is paid, Paystack's Split Payment infrastructure divides the transaction automatically: the Babysitter's net amount is paid into the Babysitter's own linked Paystack account, and Elite Traders Lounge's commission (per the rate bands in Appendix B) is paid into Elite Traders Lounge's Paystack account, in the same transaction.
- No additional Elite Traders Lounge service or platform fee is charged on top of the commission rates in Appendix B. Paystack's own standard transaction-processing fees (charged by Paystack, not by Elite Traders Lounge) may apply to a payment and are governed by Paystack's own published pricing, not by this Agreement.
- Because Paystack — not Elite Traders Lounge — holds and settles the funds, actual payout timing to a Babysitter's Paystack account follows Paystack's standard settlement schedule. Elite Traders Lounge is not liable for delays caused by Paystack, the Babysitter's or Family's bank, or incorrect Paystack account details supplied by either party.
- Cash payments or any payment arranged outside Paystack fall entirely outside this Agreement and outside Elite Traders Lounge's dispute-resolution, fraud-protection, and payment-guarantee processes.

7. Cancellation Policy

7.1 Family Cancellation (before service rendered)

Cancellation timing	Babysitter compensation	Family refund
≥ 48 hours before booking	R0 (no charge)	100% refund via Paystack
24–48 hours before booking	50% of the agreed net amount	50% refund via Paystack
< 24 hours before booking	75% of the agreed net amount	25% refund via Paystack
No-show (Family absent)	100% of the agreed net amount	R0 refund (full charge)

7.2 Babysitter Cancellation (before service rendered)

Cancellation timing	Babysitter compensation	Family refund
≥ 48 hours before booking	R0 (no charge)	100% refund via Paystack
24–48 hours before booking	25% net (forfeits 75%)	75% refund via Paystack
< 24 hours before booking	50% net (forfeits 50%)	50% refund via Paystack
No-show (Babysitter absent)	R0 (forfeits 100%)	100% refund; profile suspended pending review

7.3 After service commences: if either party cancels after the Babysitter arrives, full payment is due for hours already worked (minimum 1 hour). If the Family requests early departure, payment is due for actual hours worked; no refund applies for early departure initiated by the Family.

8. Family Responsibilities & Code of Conduct

- Provide clear, written care instructions (feeding, naps, medication, emergency contacts, house rules) before the booking begins.
- Ensure the home environment is safe for the Babysitter and the children in their care.
- Treat the Babysitter with respect — discriminatory, abusive, or unsafe behaviour is grounds for immediate suspension of the Family's account.
- Report any injury, incident, or safety concern to Elite Traders Lounge and, where relevant, emergency services, as soon as possible.
- Confirm arrival and departure via the check-in tool — this protects both the Babysitter's pay and the Family's booking.

9. Dispute Resolution

- Parties should first attempt to resolve any disagreement directly, within 24 hours of it arising.
- If unresolved, either party may submit a formal complaint to Elite Traders Lounge with the booking reference and supporting evidence.
- Elite Traders Lounge investigates within 5 business days and issues a written decision within 10 business days.
- Dual-party check-in/check-out timestamps recorded through the check-in tool are the primary evidence of worked hours in any dispute.
- Either party may escalate an unresolved dispute to independent arbitration or the relevant regulator after the internal process concludes.

10. Termination, Suspension & Right to Refuse Service

- Elite Traders Lounge reserves the right, in its sole discretion, to **refuse, suspend, or terminate service** to any Family or Babysitter who breaches this Agreement, the Code of Conduct, provides false identity, address, reference, work-permit, or banking/Paystack information, or otherwise engages in conduct that Elite Traders Lounge reasonably considers unsafe, fraudulent, or damaging to the platform or to another user.
- This right may be exercised immediately and without prior notice where Elite Traders Lounge reasonably believes a child's safety, a user's safety, or the integrity of the platform is at risk, and with reasonable prior notice in all other cases.
- Refusal or termination of service under this clause does not, by itself, entitle the affected party to any refund or compensation beyond what is expressly provided for in the Cancellation Policy (Section 7) for bookings already confirmed at the time of suspension.
- A party who believes their profile was suspended or refused service in error may lodge an appeal via the Dispute Resolution process in Section 9.

11. Data Protection (POPIA)

- Elite Traders Lounge processes personal information (identity, contact, address, and Paystack account details) strictly to verify identity, facilitate bookings, process payments, and maintain safety records, in line with the Protection of Personal Information Act.
- Identity verification data (Smile ID checks) is stored securely and is not shared with third parties beyond what is required for verification and legal compliance.
- Check-in/check-out timestamps and booking records are retained to resolve disputes and support labour-law compliance.
- The Family may request access to, correction of, or deletion of their personal information (subject to legal retention requirements) by emailing lemo.masethe@elitetraders.co.za.

12. General Terms

- **Governing law:** This Agreement is governed by the laws of the Republic of South Africa.
- **Entire agreement:** This Agreement, together with the Terms & Conditions published on the Elite Traders Lounge website, constitutes the entire agreement between the parties regarding its subject matter and supersedes all prior discussions or agreements.
- **Severability:** If any clause of this Agreement is found invalid or unenforceable, the remaining clauses continue in full force and effect.
- **No waiver:** A failure by either party to enforce any provision of this Agreement is not a waiver of that provision or of any other provision.
- **Assignment:** Neither party may assign or transfer their rights or obligations under this Agreement without the prior written consent of Elite Traders Lounge.
- **Notices:** Notices under this Agreement must be sent to the contact email or address recorded on the party's profile, or to Elite Traders Lounge at lemo.masethe@elitetraders.co.za.

13. Digital Signatures & Electronic Acceptance

This Agreement may be accepted electronically. Clicking "I Accept" (or the equivalent checkbox) during registration or booking is recorded, together with the date, time, and account details of the accepting party, and constitutes a valid electronic signature under the Electronic Communications and Transactions Act 25 of 2002. Where a physical signature is preferred, the signature blocks below may be completed and returned to Elite Traders Lounge.

The Family

Signature: _____

Full name: _____

Date: _____

Elite Traders Lounge (Pty) Ltd

Signature: _____

Name: Lemogang Masethe

Date: _____

This document is a plain-language service agreement template prepared for Elite Traders Lounge's platform operations. It is not a substitute for independent legal advice; Elite Traders Lounge is encouraged to have this Agreement reviewed by a qualified South African attorney before relying on it for enforcement purposes.